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ORBI GROUP
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Batumi city

„02“ „July“ 2026.

ORDER №10482

Instruction

On the Clarification of Certain Means of Securing Claims Under
Service Agreements Related to the Maintenance of Common Property
in Hotel Complexes by Companies / Legal Entities Included in the
ORBI Holding

1. Purpose of the Instruction

The purpose of this Instruction (hereinafter, the “Instruction”) regarding the use of means of securing claims under Service Agreements related to the maintenance of common property in hotel complexes (hereinafter, the “Service Agreement”) by companies/legal entities included in ORBI Holding is to ensure the proper fulfillment of obligations concerning the maintenance of commonly areas in hotel complexes, protect the interests of hotel room owners that fulfil their obligations in good faith, and efficiently administer the payment of service fees.

2. Factual Premise of the Instruction

2.1. Under the current contractual framework, pursuant to Clause 6.3 of the Service Agreement, in the event of a breach of the payment deadline for fees stipulated by the Service Agreement, the Service Provider is entitled, until the violation is remedied by the hotel room owner, to refuse the hotel room owner and/or the occupant of the hotel room owned by the owner access to any property owned by the Service Provider, including communication infrastructure/networks, electricity, water, and any other property or services owned by the Service Provider, as a means of securing the claim.

2.2. Under the same clause, the Service Provider is authorized to: (1) Prohibit, restrict, or refuse any third party, including JSC Energo-Pro Georgia, LLC Batumi Water, and others, from using the Service Provider’s property and/or any common property/common-use space for the purpose of supplying goods and/or services to the Owner and/or occupants of the Owner’s hotel room, including electricity, water, sewage, communication services (IPTV, Internet, Wi-Fi Internet, VoIP), etc. (2) Require any third party, including JSC Energo-Pro Georgia, LLC Batumi Water, and others, to cease within two (2) business days the use of the Service Provider’s property and/or any common property/common-use areas for supplying goods and/or services to the Owner and/or occupants of the Owner’s hotel room. (3) Upon expiration of the aforesaid two-day period, independently prevent the use of the Service Provider’s property and/or any common property/common-use areas by the Owner, occupants of the Owner’s hotel room, JSC Energo-Pro Georgia, LLC Batumi Water, or any other person, including by: disconnecting meters; cutting off or blocking supply systems; removing or disabling pipes, lines, cables, towers, communication infrastructure, or other technical means used for supplying services or goods; and/or otherwise rendering such means inoperative.



2.3. The current contractual arrangement enables effective collection of service fees. At the same time, provision of services entails significant operational costs, labor resources, and continuous development and maintenance. Therefore, timely and full payment of service fees is essential for the relevant company/legal entity within ORBI Holding to properly perform its obligations under the Service Agreement.

2.4. In parallel with the foregoing, there is an interest of protecting consumer rights. ORBI Holding seeks to ensure that unequal distribution of material, informational, and human resources does not prejudice the interests of the weaker contractual party. In this context, apartment owners have an interest in receiving uninterrupted and high-quality utility services and fair access to services. To achieve a balanced approach, it is appropriate to analyze state-established practices regarding utility services, reflected in the procedure for the unified integrated and coordinated system of electricity supply, water supply, and waste management in Tbilisi.

3. Review of Similar Practice

3.1. Services provided under the Service Agreement are comparable to utility services supplied to the subscribers, such as: gas supply, waste management services, water supply, sewerage, and electricity supply. Therefore, review of analogous practices is relevant for achieving the objectives of this Instruction.

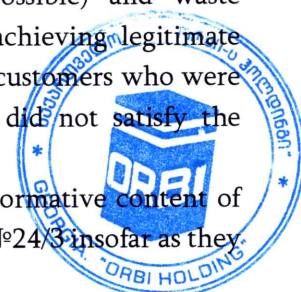
3.2. Pursuant to Article 49⁶ of the Law of Georgia on Electricity and Natural Gas, the Georgian National Energy and Water Supply Regulatory Commission (GNERC) was authorized to establish a unified integrated and coordinated system for administering electricity, natural gas, water supply, waste management services, and payment collection. Under Paragraph 4 of the same article, where one of the charges reflected on a utility bill remained unpaid or partially paid, the service administrator was obligated to discontinue its own services to the customer. These provisions were reflected in GNERC Decision №24/3 of October 13, 2010 concerning the implementation of a unified integrated and coordinated system for electricity supply, water supply, and waste management services in Tbilisi (the "Decision"). Administration of this unified system was assigned to JSC Telasi and JSC Energo-Pro Georgia. Article 5 of the Decision reiterated the requirement that administrators discontinue their own services in cases of non-payment or partial payment of any charge or fee.

3.3. On July 21, 2017, the constitutionality of both, Article 49⁶(4) of the Law of Georgia on Electricity and Natural Gas; and Article 5 of GNERC Decision №24/3 was challenged before the Constitutional Court of Georgia.

3.4. In Decision №1/2/1248 dated July 5, 2021, the Constitutional Court of Georgia held that terminating electricity supply due to delayed payment of another utility charge amounted to interference with the constitutional right of consumers to fair access to products/services in the market. However, the Court found that such interference pursued a legitimate purpose, namely: The proper functioning of the utility services system and the effective collection of service fees, ultimately directed toward ensuring public welfare and the protection of consumers' rights.

3.5. The Court distinguished services according to the possibility of controlling payment and discontinuing them independently. It concluded that: restrictions concerning water supply (for customers not individually metered or where individual cut-off was impossible) and waste management services constituted a necessary and least restrictive means of achieving legitimate objectives; whereas restrictions involving natural gas supply and water supply to customers who were individually metered or whose service could independently be disconnected did not satisfy the necessity criterion.

3.6. Accordingly, the Constitutional Court declared unconstitutional the normative content of Article 49⁶(4) of the Law on Electricity and Natural Gas and Article 5 of Decision №24/3 insofar as they



allowed termination of one service because of non-payment for another service when the latter service could independently be discontinued.

3.7. Since the practice established by the Constitutional Court and GNERC is substantively the closest analogue to relationships arising under the Service Agreement, it is considered appropriate that companies/legal entities within ORBI Holding adopt a similar standard. This implies that service termination should be used only as a necessary and least restrictive means of collecting service fees.

4. Conditions for Restricting or Terminating Individual Services

4.1. In addition to measures provided under Clause 6.3 of the Service Agreement, authorized representatives of ORBI Holding companies/legal entities shall take the following circumstances into account:

- When a customer fails to pay for services provided under the Service Agreement, ORBI companies/legal entities are unable, by the nature of such services, to discontinue them individually for a specific customer, since maintenance of common areas and common property serves all customers collectively.

- Where it is impossible to discontinue services under the Service Agreement individually for a specific customer, it shall be permissible to terminate another service, including a service provided under another contractual relationship, which is supplied individually to that customer by the relevant ORBI company/legal entity.

- Individually provided services include electricity supply (in the case of Orbi Group Batumi LLC (ID/№445468798)), and internet services (in the case of Orbi Net LTD (ID/№445548818)).

4.2. Relevant ORBI Holding companies/legal entities that individually provide services to customers (owners), such as electricity supply, internet provision, or other services, shall be entitled to suspend such services if the customer fails to pay the service fee established under the Service Agreement within the prescribed period.

4.3. The measures provided in Clause 4.2 shall remain in force until the Owner fully settles the outstanding debt.

4.4. Persons responsible for implementing Clause 4.2:

- a) Persons responsible for the provision of services under the Service Agreement.
- b) Persons responsible for providing individual services under other agreements.

5. Scope of Application

5.1. For purposes of this Instruction, hotel complexes owned by companies/legal entities within ORBI Holding include both completed and future developments, including:

- A) ORBI City Block A (Batumi, №7B Sherif Khimshiashvili St.) (Cadastral Code: 05.24.05.222);
- B) ORBI City Block C (Batumi, №7D Sherif Khimshiashvili St.) (Cadastral Code: 05.24.05.237);
- C) ORBI City Block D1 (Batumi, №1 Zh. Shartava Ave.) (Cadastral Code: 05.24.05.246);
- D) ORBI City Block D2 (Batumi, №3 Zh. Shartava Ave.) (Cadastral Code: 05.24.05.218);
- E) ORBI City Block C2 (Batumi, №3 Zh. Shartava Ave.) (Cadastral Code: 05.24.05.218);
- F) Sea Towers Block A (Batumi, №15A Sherif Khimshiashvili St.) (Cadastral Code: 05.24.04.055);
- G) Sea Towers Block B (Batumi, №15B Sherif Khimshiashvili St.) (Cadastral Code: 05.24.04.056);
- H) Sea Towers Block C (Batumi, №15C Sherif Khimshiashvili St.) (Cadastral Code: 05.24.04.054);
- I) Beach Tower (Batumi, №57 Sherif Khimshiashvili St.) (Cadastral Code: 05.32.12.230);
- J) Orbi Residence (Batumi, №2 Kobaladze St.) (Cadastral Code: 05.24.03.052);
- K) Orbi Plaza (Batumi, №4 Kobaladze St.) (Cadastral Code: 05.24.03.036);
- L) Orbi Palace (Bakuriani, №32 Didveli St.) (Cadastral Code: 64.30.04.578);
- M) Orbi Palace Deluxe (Bakuriani, №92 Didveli St.) (Cadastral Code: 64.30.04.754).



- N) Orbi Continental (Batumi, №40A Shota Rustaveli St.) (Cadastral Code: 05.23.02.020);
- O) Cipriani (Batumi, №44 Shota Rustaveli St.) (Cadastral Code: 05.23.01.001);
- P) Comfort by Orbi (Batumi, №21A Pirosmiani St.) (Cadastral Code: 05.24.08.138);
- Q) Avant-garde by Orbi (Batumi, №11E Tbel-Abuseridze St.) (Cadastral Code: 05.24.08.128);
- R) Avenue by Orbi (Batumi, №24 Zh. Shartava Ave.) (Cadastral Code: 05.26.02.133);
- S) Orbi Millennium Block A (Batumi, №1A Seaside St.) (Cadastral Code: 05.32.14.073);
- T) Orbi Millennium Block B (Batumi, №1A Seaside St.) (Cadastral Code: 05.32.14.073);
- U) Orbi Millennium Block C (Batumi, №1A Seaside St.) (Cadastral Code: 05.32.14.073);
- V) Orbi Millennium Block D (Batumi, №1A Seaside St.) (Cadastral Code: 05.32.14.073).

5.2. For the purposes of this Instruction, the list of companies/legal entities included in ORBI Holding is determined by Order №7716 dated May 10, 2023, on the Approval of the List of Companies/Legal Entities Included in ORBI Holding.

6. Transitional Provisions

6.1. For familiarization by responsible persons under Clause 4.4 and other interested parties, this Instruction shall be printed on A4 paper and:

- A) displayed in the reception area of every hotel specified in Section 5;
- B) displayed in the part of the reception area where hotel room keys/cards are issued;
- C) displayed in elevator areas on every floor containing hotel rooms in all hotels specified in Section 5.

6.2. This Instruction shall enter into force on the 15th calendar day following its publication.

6.3. This Instruction does not prohibit the use of other means of securing claims provided by Clause 6.3 of the Service Agreement, either together with or independently from the measures described herein.

Director/General Director of the companies/
Legal entites of the "Orbi" Holding

ნ. 530 ხეობა



Irakli Kverghelidze